

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case No. 2006-000171 & Case No. 2008-000523

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO
PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF
PATRICIA CUNNINGHAM, LPC, LICENSE NO. 1798,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional
Counselor Examiners (the "Board") and Patricia Cunningham, LPC, ("Respondent") as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent is licensed to practice as a professional counselor in the State of Colorado and was so licensed at all times relevant herein.
3. Respondent admits the following :
 - a. I played a cassette tape made during a counseling session when no release of information had been signed, which violated confidentiality.
 - b. I billed insurance for supervised parenting time between a father and daughter when individual counseling was the covered service.
 - c. I failed to keep therapeutic notes within established guidelines.
 - d. I wrote a report in which I stated the mother of the children I saw for only two or three sessions was a psychopath although I did not meet the mother.
4. By virtue of the admissions in paragraph 3 above, Respondent admits, and the Board hereby finds, that respondent violated C.R.S. § 12-43-222(1)(g) and (u).
5. The statutory authority of the Board is as follows:
 - (1) A person licensed, registered, or regulated under part 3,4,5,6 or 7 of this article is in violation of this article if such person:

(g) has acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which such person practices;

(u) has falsified or repeatedly made incorrect essential entries or repeatedly failed to make essential entries on patient records.

6. This Order is a full and final resolution of Case Number 2006-000171 and Case Number 2008-000523. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order

7. Respondent hereby relinquishes her license and the right to practice as a professional counselor in the State of Colorado, commencing from the effective date of this Order, and requests that the Board accept said relinquishment. Such relinquishment shall have the same force and effect as a revocation ordered by the Board. Following relinquishment of her license, Respondent shall not perform any act requiring a license to practice professional counseling in the State of Colorado.

8. Respondent understands that if Respondent applies for licensure at any future time, respondent will be required to comply with all criteria for initial licensure that exist at the time of the application.

9. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to C.R.S. § 12-43-224, and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

10. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

11. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board Order for purposes of C.R.S. §12-43-222, and shall have the same force and effect as an Order entered after a formal disciplinary hearing pursuant to C.R.S. §12-43-224.

12. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

13. This Order shall become effective when accepted and signed on behalf of the Board.

14. This Order shall be a public record in the custody of the Board.

RESPONDENT

Patricia Cunningham LPC

PATRICIA CUNNINGHAM, LPC,
License No. 1798

**COLORADO STATE BOARD OF
PROFESSIONAL COUNSELOR
EXAMINERS**

Richard P. Morales

~~David Dechant~~ Richard P. Morales
Program Director,
Board of Licensed Professional Counselor
Examiners

Effective Date: This 31 day of

March, 2008

APPROVED AS TO FORM:

FOR THE RESPONDENT

Cathy Klein
CATHY A. KLEIN, Esq.

Attorney for Respondent
Patricia Cunningham, LPC

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MAR 25 2008

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